

TENTATIVE RULING

Case: **Zaragoza v. Yates**
Case No. CV2025-2270

Hearing Date: **March 10, 2026** **Department Fourteen** **9:00 a.m.**

Motion to quash:

The Court, in its discretion, considers plaintiff Justin Zaragoza’s untimely opposition, filed on March 3, 2026. (Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that “a trial court has broad discretion to accept or reject late-filed papers”].)

Despite plaintiff’s notice of hearing unavailability, the Court declines to continue the hearing. Plaintiff represents that he will be available to appear remotely, and this Court permits remote appearances for civil proceedings. (See YCR 2.4(c) [“Remote appearance is authorized but not mandated for all civil proceedings...”].)

Defendant Melissa Yates’ motion to quash for lack of jurisdiction, non-service, forum nonconveniens is **GRANTED**. (Code Civ. Proc., § 418.10, subd. (a)(1).) “When a defendant challenges that jurisdiction by bringing a motion to quash, the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.” (*Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 793, citation and quotation marks omitted.) While “the filing of a proof of service creates a rebuttable presumption that the service was proper,” this “presumption arises only if the proof of service complies with the applicable statutory requirements.” (*Id.* at p. 795.) Defendant challenges jurisdiction by filing this motion to quash, asserting that she was never served with the summons and complaint. (Yates decl., ¶ 2.) As the proof of service does not demonstrate compliance with applicable statutory requirements, there is no rebuttable presumption. (See Code Civ. Proc., § 415.20, subd. (b); Motion, Exhibit B.) Plaintiff has not satisfied his burden to show proper service on defendant. (See *Floveyor Internat., Ltd., supra*, 59 Cal.App.4th at p. 793.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion for sanctions:

Defendant’s motion of CCP § 128.5 motion for sanctions against plaintiff’s complaint and motion of CCP § 128.7 motion for sanctions against plaintiff’s complaint are **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., §§ 128.5, 128.7.) Defendant did not file these motions at least 16 court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).)

The notice of motion provides notice of this Court’s tentative ruling system. However, the notice does not contain the required language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2023). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.